

Manish Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 September 2014 · Criminal Misc. Writ Petition No. 16113 of 2014 · **FIR quash refused; CrPC 41/41-A on arrest; compounding under Code**

HEADNOTE

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence is not quashed. Where arrest has not yet been made and the offence will not entail a sentence of more than seven years, police must observe CrPC Sections 41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Manish Sharma approached the High Court at Allahabad seeking quashing of an FIR dated 3 August 2014, registered as Case Crime No. 1139 of 2014 under Section 135 of the Electricity Act at Police Station Kwarsee, District Aligarh. He had not been arrested. Counsel submitted that the alleged offence could not attract imprisonment exceeding seven years, so arrest should not be mechanical, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash, arrest safeguards, compounding

HOLDING

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence cannot be quashed. Where the accused has not been arrested and the offence will not entail a sentence of more than seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, compounding may be sought under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy s.135 FIR left standing; arrest, if at all, under CrPC 41(1)(b)/41-A; compounding pointed to Supply Code 2005. ¶ 1